State by such selections waiving all rights to the unsurveyed sections.

State-owned lands, as well as school sections surveyed and unsurveyed the title to which has not yet vested in the State, located within national forests, national parks and monuments, Indian or other reservations or withdrawals, may be offered as a basis for an exchange under said section 8 of the Taylor Grazing Act as amended, where the selected lands are not within a grazing district. Where the selected lands are within a grazing district, lands within the exterior boundaries of the grazing district and also within such reservations or withdrawals may be offered as a basis for an exchange only if the Secretary of the Interior determines that the exchange would not interfere with the administration or value of the remaining lands in the grazing district for grazing purposes.

2. Section 147.4 is amended to read as follows:

§ 147.4 *Application for exchange; evidence required.* A State desiring to exchange lands under section 8 of the Taylor Grazing Act (48 Stat. 1269; 43 U. S. C. 315–315n, 1171) should file application, in triplicate, in the district land office having jurisdiction over the selected lands, or in the Bureau of Land Management when there is no district land office within the State. Such application should describe the lands offered to the Government as well as those selected in exchange, by legal subdivisions of the public land surveys, or by entire sections, and nothing less than a legal subdivision may be surrendered or selected.

The application for exchange should identify the grazing district or districts in which the offered or selected lands are situated, if such lands lie within a grazing district, and should state whether the State desires the proposed exchange to be based upon equal value or equal acreage. In addition, the application should state whether or not any reservations of minerals, easements, or other rights of use in or to the offered lands are desired, and what use thereof is contemplated, whether the State consents to a reservation of minerals to the United States in the selected lands and what other reservations or easements which are to be made by the United States with respect to the selected lands are acceptable to the State. Each application for an exchange must be accompanied by the following certificate and statement:

(a) A certificate by the selecting agent showing that the selection is made under and pursuant to the laws of the State; that the lands selected and the lands relinquished are approximately of equal value, unless the exchange is proposed to be based on equal areas; that the State is the owner of the lands offered in exchange, if such is the case; that the offered lands are not the basis of another selection or exchange, and that the selected lands are unappropriated and are not occupied, claimed, improved, or cultivated by any person adversely to the State.

(b) A corroborated statement relative to springs and water holes on the selected lands in accordance with the regulations in §§ 292.1 to 292.9, inclusive, of this chapter.

3. Section 147.6 is revoked.

4. Sections 147.7 to 147.16 are renumbered §§ 147.6 to 147.15, respectively.

5. The first sentence of § 147.8, renumbered § 147.7, is amended to read as follows:

§ 147.7 *Additional evidence required.* After considering the application and any evidence relative thereto as he may deem necessary, the Director of the Bureau of Land Management, unless he has reason to do otherwise, will with the approval of the Secretary of the Interior, issue notice for publication of the contemplated exchange, and will require the State, through the Manager of the District Land Office, to submit proof of publication of notice, a duly recorded deed of conveyance of the offered lands (unless such offered lands are not owned by the State), a certificate of the proper State officer showing that the offered lands have not been sold or otherwise encumbered by the State, and a certificate by the recorder of deeds or official custodian of the records of transfers of real estate in the proper county, or by an abstractor or abstract company satisfactory to the Department of the Interior, that no instrument purporting to convey or in any way encumber title to the offered land is of record or on file in his office. * * *

6. Section 147.15, renumbered § 147.14, is amended to read as follows:

§ 147.14 *No indemnity right accrues by the inclusion of school sections within grazing districts.* A grazing district is not a reservation within the meaning of the act of February 28, 1891 (26 Stat. 796; 43 U. S. C. 851, 852), and therefore school sections, surveyed or unsurveyed, within a grazing district are not for that reason only valid base for indemnity school land selections under said act of 1891. The inclusion of unsurveyed school sections within a grazing district will not prevent the title to such lands from vesting in the State upon the acceptance of the plat of survey thereof by the Director of the Bureau of Land Management.

Granted school sections owned by a State within or without the boundaries of a grazing district may be assigned by the State as a basis for an equal value, or equal area exchange, and unsurveyed school sections within or without the boundaries of a grazing district may be assigned by the State as a basis for an equal area exchange.

(Sec. 2, 48 Stat. 1270; 43 U. S. C. 315a)

FRED W. JOHNSON,
Director.

Approved: April 7, 1947.

J. A. KRUG,
Secretary of the Interior.

[F. R. Doc. 47-3616; Filed, Apr. 16, 1947; 8:50 a. m.]

Appendix—Public Land Orders

[Public Land Order 363]

ALASKA

REVOKING EXECUTIVE ORDER NO. 1513 OF APRIL 1, 1912, WITHDRAWING PUBLIC LAND FOR USE OF THE AGRICULTURAL DEPARTMENT AS AN EXPERIMENT STATION

By virtue of the authority vested in the President by the act of June 25, 1910, 36 Stat. 847 (43 U. S. C. 141–143), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 1513 of April 1, 1912, withdrawing certain public lands fronting on Kalsin Bay on Kodiak Island, Alaska, for the use of the Agricultural Department as an experiment station, is hereby revoked.

The land is subject to Executive Order No. 8344 of February 10, 1940, withdrawing certain public lands on Kodiak and other islands for classification and in aid of legislation.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

APRIL 9, 1947.

[F. R. Doc. 47-3617; Filed, Apr. 16, 1947; 8:50 a. m.]

[Public Land Order 364]

ALASKA

REVOKING EXECUTIVE ORDER NO. 6833 OF AUGUST 28, 1934, WITHDRAWING PUBLIC LAND FOR USE OF THE DEPARTMENT OF AGRICULTURE AND THE ALASKA GAME COMMISSION AS A HEADQUARTERS SITE

By virtue of the authority vested in the President by the act of June 25, 1910, 36 Stat. 847, as amended by the act of August 24, 1912, 37 Stat. 497 (43 U. S. C. 141–143), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 6833 of August 28, 1934, withdrawing the public lands on Near Island, off the northeastern shore of Kodiak Island, Alaska, for the use of the Department of Agriculture and the Alaska Game Commission as a headquarters site, is hereby revoked.

The lands are subject to Executive Order No. 8344 of February 10, 1940, withdrawing Kodiak and other islands, including all adjacent islands within two miles from the shores thereof for classification and in aid of legislation.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

APRIL 9, 1947.

[F. R. Doc. 47-3618; Filed, Apr. 16, 1947; 8:50 a. m.]